

Excerpts from United States Federal Law (Public Domain)

This document collects three public-domain texts used to demonstrate the English-to-Chinese legal translation pipeline: the First Amendment to the United States Constitution, Section 1 of the Fourteenth Amendment, and 42 U.S.C. § 1983.

Amendment I

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

The several state constitutions likewise secure the free exercise of religion and the liberty of speech and of the press, and provisions of this kind have long been understood to withdraw these subjects from the sphere of legislative discretion. In the exercise of some of these rights, the people may act through assemblies and associations; in others, they act through the press, which, serving as a channel for the communication of thought, remains exempt from previous restraint, subject to liability after publication for abuses that the law may define.

Amendment XIV, Section 1

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

The clause last cited, the equal protection clause, has been the foundation of a large body of doctrine. Its command is addressed to the States, and it operates to restrain unreasonable classifications in the exercise of state power, whether that power is exercised by the legislature, by the courts, or by executive officers.

42 U.S.C. § 1983 — Civil action for deprivation of rights

Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress, except that in any action brought against a judicial officer for an act or omission taken in such officer's judicial capacity, injunctive relief shall not be granted unless a declaratory decree was violated or declaratory relief was unavailable.

When a plaintiff invokes 42 U.S.C. § 1983, the court must identify the specific federal right allegedly deprived, determine whether the defendant acted under color of state law, and then consider any

defenses that may defeat liability, including good-faith immunities recognized for certain categories of defendants.